

24NWCV02130 24NWCV02130

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Case Number: 24NWCV02130 Hearing Date: September 10, 2026 Dept: D

ERICA H. YANG V. GERMERY JUNIOR RAMIREZ, ET AL.

CASE NO.: 24NWCV02130

HEARING: 09/10/2026 @ 9:30 a.m.

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TENTATIVE ORDER

Defendants Geremy Junior Ramirez and Reliable Carrier Services, Inc.'s motion to bifurcate is DENIED.

Moving party to give notice.

Defendants Geremy Junior Ramirez and Reliable Carrier Services, Inc. (Defendants) move to bifurcate the issue of its liability from Plaintiff's damages.

Background

On July 11, 2024, Plaintiff Erica H. Yang (Plaintiff) filed a Complaint against the Defendants Geremy Junior Ramirez, Reliable Carrier Services, Inc. (Defendants), and Albino P. Feregrino, asserting causes of action for motor vehicle and general negligence, arising out of a vehicle collision.

On July 9, 2026, Plaintiff dismissed Defendant Feregrino.

On July 29, 2026, Defendants filed this motion to bifurcate the issue of liability from damages. On August 27, 2026, Plaintiff filed an opposition. On September 2, 2026, Defendants filed a reply.

Legal Standard

“The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5.” (Code Civ. Proc., § 598.)

“The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).)

Granting or denying of a motion for separate trials lies within the trial court’s sound discretion, and is subject to reversal on appeal only for clear abuse. (Grappo v Coventry Financial Corp. (1991) 235 Cal App 3d 496, 504.) “The major objective of bifurcated trials is to expedite and simplify the presentation of evidence.” (Foreman & Clark v. Fallon (1971) 3 Cal.3d 875, 888.)

Analysis

Defendant seeks to bifurcate the liability and damages phases of trial. Defendant contends these phases should be bifurcated because the issues are distinct and trying them together would risk juror confusion and undue prejudice. Defendants argue that when jurors are exposed to graphic descriptions of serious injuries and hundreds of thousands of dollars in medical bills, there is a natural human tendency to want to compensate the injured party, which can improperly lower the threshold for finding liability. Defendants

argue that the risk of prejudice is particularly acute here because certain aspects of the liability evidence may already create an uphill battle for Defendants. When combined with emotionally

charged evidence of Plaintiff's injuries, they argue there is a significant risk that the jury's deliberation on liability will be contaminated by improper sympathy and a desire to ensure that the injured Plaintiff receives compensation, regardless of the merits of the fault question.

Defendants also argue the liability determination is a largely straightforward issue, and the damages phase will be complex and time consuming. Plaintiff claims injuries across multiple body parts, including upper back, lower back, neck, right shoulder, and alleged TBI, and has treated with at least eight healthcare providers across numerous specialties. Defendants contend that if liability is resolved first and it is determined that Defendants are not liable (or that liability is significantly limited), the Court and the parties will be spared the substantial time and expense of presenting what would otherwise be days of medical testimony, records review, and expert causation evidence. Even if liability is established, Defendants argue, a phased trial allows the damages portion to proceed in an orderly fashion without the need to simultaneously juggle liability witnesses and medical witnesses. This promotes the "economy and efficiency of handling the litigation" contemplated by Code of Civil Procedure Section 598.

Plaintiff argues in opposition that liability is adverse to Defendants, as made clear by the sworn deposition testimony of Defendant Ramirez (which he clearly put himself at fault for causing the underlying vehicle crash as he testified that he swerved into the adjacent lane without first checking whether it was clear and

struck the rear of Feregrino's vehicle, causing it to collide with Plaintiff) and the sworn testimony of his employer, Defendant Reliable Carrier Services, Inc. Plaintiff argues Defendant Ramirez's testimony illustrates that the liability determination will turn on the movement of the vehicles and the mechanics of the collision, and those same circumstances and collision mechanics also bear on Plaintiff's injury-causation evidence, including the opinions of her accident reconstruction, biomechanical, and medical witnesses. Plaintiff points out that these are the only two defendants remaining in this case, and they share liability under the clear application of

employer-employee/respondent superior liability. Plaintiff argues that bifurcation would prolong this litigation, waste judicial resources, and prejudice Plaintiff. Plaintiff argues nor have Defendants demonstrated that trying liability and damages together would create any meaningful risk of juror confusion or the type of undue prejudice contemplated by the bifurcation statutes. Plaintiff contends their argument rests almost entirely on the speculative assertion that the severity of Plaintiff's injuries may evoke sympathy from the jury.

The Court finds Plaintiff's contentions regarding overlapping evidence persuasive. The facts concerning how the collision occurred, including the movement of the vehicles, the point of impact, the roadway conditions, and the forces involved, are central not only to liability, but also to the opinions of Plaintiff's experts concerning injury causation. Thus, bifurcating the issue of liability and damages would only prolong the trial. Further, Defendants have not demonstrated juror confusion and the issues are not complex and their argument that the jury may be inflamed is based on speculation.

Plaintiff seeks sanctions against Defendant for filing this motion. But Plaintiff provides no legal authority authorizing sanctions in this circumstance. While Plaintiff relies on CCP section 128.5, that section requires a separate motion. CCP (See CCP section 128.5(f)(1)(A).) Thus, the request is denied.

Conclusion

Based on the foregoing, Defendants' motion to bifurcate is DENIED.